

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SOUTHERN INTERNATIONAL CO., LTD., *Complainant*

v.

DAYNAMEZ GROUP OF COMPANIES LLC, *Respondent*.

DOCKET NO. 25-24

Served July 16, 2026

ORDER OF: Mary Apostolakos HERVEY, *Administrative Law Judge*.

ORDER ON RESPONDENT’S MOTION FOR EXTENSION TO RESPOND TO MOTION TO COMPEL

This matter came on for consideration of: Respondent’s Motion for Extension of Time to Respond to the Motion to Compel filed July 14, 2026; and Complainant Southern International Co., Ltd.’s Opposition to Respondent’s Motion for an Extension of Time with Exhibit A filed July 15, 2026. For the reasons set forth below, the motion is **GRANTED**. The deadline for responding to Complainant’s motion to compel is extended by a period of seven days to **July 20, 2026**.

On July 5, 2026, Complainant Southern International Co., Ltd.’s Motion to Compel Verified Supplemental Discovery Responses and Complete Document Production was filed. (Dkt. 41.)

Pursuant to 46 C.F.R. § 502.71(b), Respondent’s response to the motion was due to have been filed on July 13, 2026. Respondent seeks a seven day extension of the time to respond on the ground that disputed discovery responses are extensive and related to more than 500 shipments.

Complainant opposes the motion on the ground that the request was not timely made at least seven days in advance of the deadline in accordance with 46 U.S.C. § 502.102(a), and does not assert good cause for failure to meet this requirement under the exceptional circumstances standard set forth in 46 U.S.C. § 502.102(b).

Respondent stated as follows in the email sent to Complainant requesting consent to the extension: “We would respectfully ask for a seven day extension of time to respond to the Motion to Compel. It is quite extensive. We have been working on it and still need more time. You disputed many responses and answers.” (Opposition, Exhibit A.)

Despite the untimeliness of the motion, I find that good cause exists to allow Complainant sufficient time to respond to the disputed issues that have been described as extensive. The requested seven-day extension is nominal, and attorneys routinely consent to such

modest extension requests as a professional courtesy to one another. Moreover, the interests of justice are served by ensuring that parties have sufficient opportunity to develop fully the record and resolve discovery disputes without unnecessary intervention by the tribunal.

Complainant does not argue that granting this request will result in any prejudice, and I find that no prejudice would result.

For these reasons, Respondent's motion is **GRANTED** and the deadline for responding to Complainant's motion to compel filed July 5, 2026, is extended by a period of seven days from July 13, 2026, to **July 20, 2026**.

MARY A. HERVEY -S Digitally signed by MARY A. HERVEY -S
Date: 2026.07.16 12:11:26 -04'00'

Mary Apostolakos Hervey
Administrative Law Judge